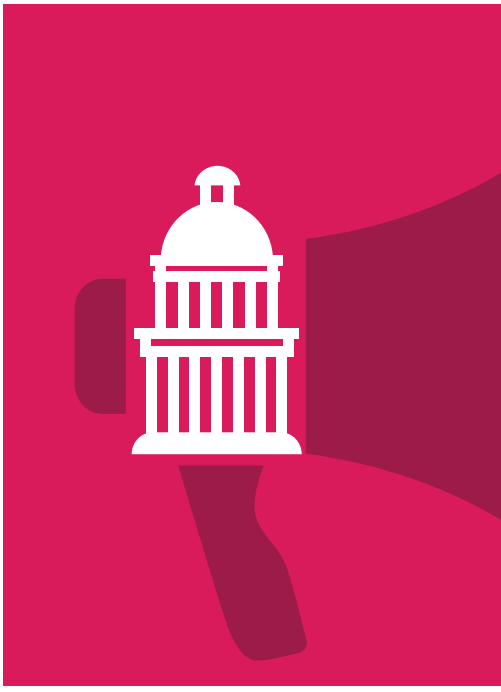
GROUNDWATER OF THE CONSTITUTION



BY SANJAY HEGDE



On June 26, RSS general secretary Dattatreya Hosabale said the quiet part out loud. He wanted a discussion on whether the words 'secular' and 'socialist' "should remain" in the Constitution's Preamble. He said Ambedkar never used these words and argued that they were smuggled in during the Emergency. The 50th anniversary of the Emergency was seemingly a good occasion to discuss deleting them altogether.

Hosabale does not seek reform; what he wants is a regression. The Constitution is not an à la carte menu. You cannot pick what you like and discard the rest. The Preamble reflects our national purpose. To alter its core is not debate. It is demolition.

Yes, the 42nd Amendment added those words in 1976. But the idea behind them was always there. Secularism and Socialism flow through the Constitution like groundwater. You won't find secularism on every page. But dig, and it's there. Article 14 promises equality before law. Articles 15 and 16 prohibit discrimination. Article 25 guarantees freedom of religion. Articles 27 and 28 keep religion out of state institutions. Articles 29 and 30 protect cultural and educational rights of minorities. None of these need the word 'secular' to work. But the word ties them together conceptually. Secularism in India is not about hostility to religion. It means the state keeps an equal distance from all religions. It does not bow before temple, mosque or church. It protects belief. And the right not to believe. That's not alien. That's constitutional.

Socialism, too, is not an alien transplant. It means social justice. It means the state must look after the weak. It means wealth cannot be the only source of power. Ambedkar didn't oppose the idea. He only warned against locking in an economic model. But the Directive Principles say enough: reduce inequality, ensure fair wages, protect the dignity of labour. These are socialist values, Indian in spirit.

Hosabale says the amendment came during dark times. True. But a bad moment doesn't make every act bad.

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Courts didn't strike down that part of the amendment. Even the Janata government, which reversed much of the Emergency's excesses, retained those words, and Atal Bihari Vajpayee and L.K. Advani, as important ministers in that government, raised no objection to the continuation of those words.

The Supreme Court has settled this. In *Kesavananda Bharati vs State of Kerala* (1973), secularism was enumerated among the Constitution's basic features. In *S.R. Bommai vs Union of India* (1994), the court said secularism is part of the Constitution's basic features. These are not footnotes. These are judgments of large constitution benches.

You cannot amend the basic structure. You cannot touch the foundation without breaking the house. Parliament is powerful, but not absolute. Hosabale's demand is not about semantics. It is about reshaping the state. It is about shifting India from a secular republic to a majoritarian democracy. That's not just a constitutional problem. It's a national one.

India is not one colour, one language, one faith. It is a complex, layered society. Secularism is how we manage that diversity. Not by denial. But by respect and neutrality. You don't need the word 'secular' to act secular. But once you drop the word, you make space for its opposite. That is the risk. Words matter. That's why the RSS wants to drop them. To clear the path for something else. They want a Hindu Rashtra, not a secular republic. Let us not pretend otherwise. This is not about constitutional clarity. It's about political ambition. The Preamble is not a draft. It is a declaration. It says who we are. It says what we aspire to be. We may not always live up to it. But we do not give up on it or allow our national covenant to be rewritten by those who never believed in its words to begin with. ■

The author is a senior advocate at the Supreme Court

Illustration by RAJ VERMA